

A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

October 5, 2016

City of Cheyenne
Honorable Cheyenne City Council Members
2101 O'Neil Avenue
Cheyenne WY, 82001

RE: Waterford Square 2nd Filing Final Plat

Dear Council Person:

I am writing this letter as it is my duty as Cheyenne City Engineer, to inform you of projects that do not meet the Cheyenne Unified Development Code.

At the Public Services Meeting on October 4, 2016 PSC recommended that the Waterford Square 2nd Filing Final Plat be approved despite the objections of both the Planning & Engineering Departments. I know that multiple staff members have spent hour's reviewing this project, together with the developer and his engineer. We have suggested a number of ways he can correct the deficiencies.

City Staff is not anti-development. We are here to assure that City Code, Ordinances, and Policies are adhered to. I took an oath to do the same.

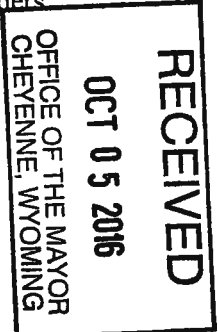
Waterford Square 2nd Filing does not comply with our Development Code as Cheyenne does not allow for private roads, nor does it qualify for a subdivision waiver.

It is my opinion that if passed and constructed as a private alley the following will happen:

1. A precedence will be set for 20' private roadways throughout the City and soon we will have private roads everywhere. These are much cheaper to construct therefore all builders will want to use them in order to keep the home sales competitive.
2. Residents of these 50+ homes will soon begin requesting from the City.
 - a. Snow removal
 - b. Curb side garbage collections
 - c. City Street Lights
 - d. Animal Control Services
 - e. Removal of old vehicles in the alley way etc.

*Fortunately, the City Police and Fire will still respond to emergencies.

3. Residences may also request sidewalks so their children can walk down the alley without getting run over.



4. Traffic control and speeding may become a problem.
5. Eventually the alley will need repair and when presented with the costs, the homeowners may very likely turn to the City to bail them out, as they have no other choice.

When all of this happens it will be the tax payers and the City that must respond. At this point the only person to benefit from having built a substandard subdivision in Cheyenne is the Developer/Builder.

West Gate Subdivision off of Carlson is an example of this situation it used to be private roads. Fortunately for the City they weren't 20' alleys.

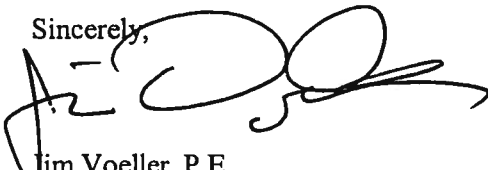
This is why Cheyenne adopted The Unified Development Code. It keeps everyone on a level playing field. People moving into town can expect that all Cheyenne development meets certain minimum standards.

For the council to approve below minimum or substandard developments really upsets the applecart.

As an added note, I recently became aware that the Developer has submitted to planning another version of the same plat which uses a 40' street not a 20' private alley. I recall the owner's agent telling Public Services that the plans before you are the best solution or something similar. This is a much better solution, although it does not completely comply with the UDC. I submit they already have a better solution.

Again, I urge you to Deny the Waterford Square 2nd Filing Final Plat at the October 10, 2016 City Council Meeting.

Sincerely,



Jim Voeller, P.E.
City Engineer

Xc: Mayor Rick Kaysen
Engineering & Planning staff